

SENATE BILL 2131

By Haile

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 13; Title 66 and Title 68,
relative to accessory dwelling units.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 13, Chapter 7, is amended by adding
the following as a new part:

Part 7

Accessory Dwelling Units

13-7-701. Definitions.

(a) As used in this part:

(1) "Accessory dwelling unit" or "ADU" means a residential housing unit
that is:

(A) Located on a lot that is zoned for a single-family home or
duplex;

(B) Independent of the attached or detached primary residential
dwelling unit; and

(C) A complete and independent living facility for at least one (1)
individual; and

(2) "Local government" means a county, incorporated city or town, or
metropolitan government.

13-7-702. Zoning authority.

(a) A local government, the planning commission of a local government, or a
regional planning commission:

(1) Shall not adopt a plan, ordinance, resolution, or rule that:

(A) Requires an ADU to contain less than eight hundred fifty square feet (850 sq. ft.);

(B) Is more restrictive in its application to ADUs than a single-family home located on the site of the ADU;

(C) Prohibits an owner of a lot zoned for a single-family home or duplex from building an ADU before, after, or concurrently with the building of the primary residential dwelling unit on the lot;

(D) Prohibits the owner from entering into a residential lease for an ADU;

(E) Requires the owner to occupy the primary residential dwelling unit;

(F) Requires parking for an ADU on a lot that is less than seven thousand square feet (7,000 sq. ft.); provided, that the local government or commission may require the replacement of parking for the primary residential dwelling unit if the ADU location eliminates the primary residential dwelling unit's existing parking;

(G) Requires a minimum lot size for an ADU that is larger than the minimum lot size for a primary residential dwelling unit for the applicable jurisdiction;

(H) Requires side or rear building, plane, or other setbacks of more than five feet (5'), not including setbacks related to environmental features, erosion, or waterways to the extent authorized by federal or state law;

(I) Prevents an owner of a lot zoned for a single-family home or duplex from converting an existing structure to an ADU by requiring setbacks larger than the current structure's setbacks;

(J) Applies the local government's or commission's local growth restrictions or density or bulk limitations to an ADU;

(K) Regulates the design of an ADU, including the shape, massing, or distribution of square footage between floors;

(L) Requires the height of an ADU to be less than fourteen feet (14'), measured from floor to ceiling;

(M) Requires the owner to remit an impact fee, if authorized by law in the respective jurisdiction, unless the ADU requires:

(i) An increase in the size of the meter or connection to serve the primary residential dwelling unit; or

(ii) A new meter or connection for the ADU;

(N) Charges the owner an additional development fee or assessment;

(O) Imposes a restriction on ADU occupancy on the basis of age or an employment relationship with the primary residential dwelling unit owner;

(P) Prohibits construction of an ADU in accordance with applicable residential building codes; or

(Q) Prohibits an ADU based on its orientation on the lot with respect to the primary residential dwelling unit if space allows for that orientation.

(2) May adopt less restrictive requirements for ADUs than those specified in this section.

(b) Except as provided in this part, a local government, the planning commission of a local government, or a regional planning commission may:

(1) Apply applicable height limitations, front setback limitations, open space or impervious cover limitations, floodplain requirements, waterway setbacks, environmental setbacks, drainage requirements, requirements related to erosion, site plan review, and other zoning requirements to the extent authorized by federal or state law, but only if those requirements:

(A) Would be applicable to a single-family home or duplex located on the same site as the ADU; and

(B) Are not more restrictive than the requirements applicable to a single-family home or duplex;

(2) Publish ADU plans, building codes, and design standards that are permitted in an applicable jurisdiction, including standards relating to height, setback, landscape, and the maximum size of an ADU;

(3) Authorize an ADU to be located on a lot that contains a structure subject to a historic preservation law with the approval of the local government and each historic preservation entity with jurisdiction over the subject property;

(4) Apply the local government's regulations on short-term rental units to an ADU, pursuant to part 6 of this chapter;

(5) Prohibit the sale of an ADU separately from the primary residential dwelling unit unless the ADU is located on a separate lot from the primary residential dwelling unit; and

(6) Apply the local government's parking restrictions if the restrictions do not:

- (A) Require more than one (1) parking space for each ADU; or
- (B) Regulate the placement or adequacy of parking.

13-7-703. Permit approval requirements.

(a) A local government that requires a permit to construct an ADU shall:

- (1) Process the application for the permit ministerially without discretionary review or a hearing;
- (2) Consider only whether the application satisfies the applicable zoning and building codes, design standards, and fire codes; and
- (3) Approve or deny the application not later than sixty (60) days after the date the applicant submits the completed application.

(b) A permit application submitted under subsection (a) is deemed approved if the local government does not approve or deny the application on or before the period specified in subsection (a).

13-7-704. Property owner action.

(a) A property owner may bring an action against a local government, the planning commission of a local government, or a regional planning commission that violates this part for appropriate equitable relief.

(b) A court may award a prevailing claimant reasonable attorney's fees and costs incurred in bringing an action under this section.

13-7-705. Effect of other laws, rules, and restrictions.

This part does not supersede, preempt, or apply to:

(1) A historic preservation law, rule, or ordinance, deed restriction, or homeowners association rule or bylaw that limits or prohibits the construction of an ADU; or

(2) Requirements implementing state and local water quality laws.

13-7-706. Conflicts of law.

To the extent that this part conflicts with another provision of state law, this part controls. It is the intent of the general assembly that other provisions of state law that may be given effect remain enforceable.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.